

HOUSE BILL 1538

By Stinnett

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to unmanned aircraft.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-903(a)(5), is amended by deleting the subdivision.

SECTION 2. Tennessee Code Annotated, Section 39-13-903(b)(1), is amended by deleting the language "(a)(1)-(5)" and substituting "(a)(1)-(4)".

SECTION 3. Tennessee Code Annotated, Section 39-16-201(b), is amended by adding the following new subdivision:

(3) Knowingly use an unmanned aircraft over any portion of a property that includes a correctional facility. As used in this section, "unmanned aircraft" means the same as defined in § 39-13-901.

SECTION 4. Tennessee Code Annotated, Section 39-16-201(c)(1), is amended by deleting the subdivision and substituting:

(1) A violation of subdivision (b)(1)(A), (b)(2)(A), or (b)(3) is a Class C felony.

SECTION 5. Tennessee Code Annotated, Section 39-16-201, is amended by adding the following new subsection:

(d) A correctional facility employee may disable an unmanned aircraft that is operating over property that includes a correctional facility in violation of subdivision (b)(3). The correctional facility and the correctional facility employee are not liable for damage to the unmanned aircraft as a result of being disabled.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.